

("Rivercourt"). A motion seeking relief under section 473 is addressed to the sound discretion of the trial court. *Rivercourt, supra*, 41 Cal.App.4th at 1480. Neither mistake, inadvertence, nor neglect will warrant relief unless upon consideration of all of the evidence it is found to be excusable. *Conway v. Municipal Court* (1980) 107 Cal.App.3d 1009, 1017. The party seeking relief under section 473(b) bears the burden of establishing that the mistake, inadvertence, surprise or neglect was excusable. *Id.*

Pet Pros' management indicates that although its agent for service of process was served, the business not receive actual notice of the Summons or Complaint at that time and that its management did not learn about the service until it received the papers in June 2025 from the CT Corporation, after the default had already been entered. See Declaration of Frank Mahony filed on November 21, 2025, ¶15 *et seq.*

Disposition

The Court further finds and orders as follows:

1. The Motion to Set Aside Default is GRANTED.
2. Pet Pros shall file and serve a responsive pleading within ten (10) days.
3. The Court shall issue the order after hearing.

12. 9:00 AM CASE NUMBER: C25-01312

CASE NAME: YANHUA XU VS. CHIACHIA HSU

***HEARING ON MOTION IN RE: EXPUNGE LIS PENDENS AND REQUEST FOR ATTORNEY'S FEES AND COSTS**

FILED BY:

TENTATIVE RULING:

Defendants Chia Chia Hsu, Yaobin Li (collectively, the "Defendants") filed a Motion to Expunge Lis Pendens on November 12, 2025 ("Motion to Expunge Lis Pendens"). The Motion to Expunge Lis Pendens was set for hearing on March 30, 2026. Thereafter, the Court, *sua sponte*, continued this matter to April 13, 2026. Notice was duly given.

Background

On May 8, 2025, the Complaint was filed herein by plaintiff Yanhua Xu. There are two named individual Defendants, Chia Chia Hsu, Yaobin Li.

The initial Complaint alleges that defendant Chia Chia Hsu ("Defendant Hsu") claims a 50% ownership interest in the real property located at 4800 Bissell Avenue in Richmond, California (the "Subject Property"). The Complaint alleges that defendant Yaobin Li claims the "remaining" 50% ownership interest in the Subject Property. Plaintiff alleges that she transferred a \$180,000 contribution to the \$1,615,000 purchase price of the Subject Property in 2022. She further alleges that these funds "were applied toward the down payment used to acquire [Defendant Hsu's] 50% recorded interest in the Property." However, "Plaintiff was not listed on title or the grant deed at the time of purchase." Among other claims, plaintiff seeks to "quiet title in her favor for a proportional interest in the Property consistent with her \$180,000 contribution."

A verified First Amended Complaint was filed on October 25, 2025. The First Amended Complaint contains similar allegations, and asserts that the "ownership interests are as follows Plaintiff –

34.88%; defendant Chiachia Hsu – 15.22%; defendant Yaobin Li – 50%.” The First Amended Complaint pleads causes of action for quiet title, reformation and declaratory relief.

On November 12, 2025, Defendants filed their Motion to Expunge Lis Pendens.

Analysis

The purpose of a lis pendens is “to give constructive notice of an action affecting real property to persons who subsequently acquire an interest in that property, so that the judgment in the action will be binding on such persons even if they acquire their interest before the judgment is actually rendered.” *Bishop Creek Lodge v. Scira* (1996) 46 Cal.App.4th 1721, 1733. “As a practical matter, the filing of a lis pendens usually clouds the title to the property and prevents its transfer until the litigation is resolved or the lis pendens is expunged.” *Malcolm v. Superior Court of Santa Clara County* (1981) 29 Cal.3d 518, 523, fn. 2 (superseded by statute on other point). At any time after a notice of pendency of action has been recorded, any party with an interest in the real property may apply to the Court to expunge the notice. See Code Civ. Proc. § 405.30.

The expungement statutes provide that a lis pendens may be expunged on three grounds: (1) the pleading on which the notice is based does not contain a real property claim (Code Civ. Proc. § 405.31); (2) the claimant has not established by a preponderance of the evidence the probable validity of the real property claim (Code Civ. Proc. § 405.32); or (3) adequate relief can be secured to the claimant by the giving of an undertaking (Code Civ. Proc. § 405.33). See *Carr v. Rosien* (2015) 238 Cal.App.4th 845, 857. Probable validity is met when the Plaintiff establishes her claim by a preponderance of the evidence. Code Civ. Proc., § 405.32.

Unlike most other motions, when a motion to expunge is brought, the burden is on the party opposing the motion to show the existence of a real property claim. *Kirkeby v. Superior Court* (2004) 33 Cal.4th 642, 647 (citing Code Civ. Proc. § 405.30).

Although Defendants concede that the First Amended Complaint pleads a real property claim, Defendants contend that Plaintiff cannot establish the probable validity of the claim. Plaintiff argues, among other things, that allegations of the transfer of the \$180,000 from her bank account to the escrow for the subject property is insufficient in light of the recorded state of title.

Opposition papers were filed on April 6, 2026.* The Opposition papers indicate that the parties had come to an agreement that resolves the pending motion. Plaintiff describes the recordation of a “Notice of Withdrawal of Pendency of Action” in reliance on the agreement. In light of the purported agreement and resolution, the parties are ordered to appear on the hearing to confirm that the matter has been resolved by agreement or else discuss resetting the motion for further hearing.

*Although the Opposition papers were filed untimely, the Court, in its discretion, has considered them.

Disposition

The Court finds and orders as follows:

1. PARTIES TO APPEAR.